

CANDIDATE EMPLOYMENT BOND & GUARANTEE AGREEMENT

This Candidate Employment Continuation Bond & Guarantee Agreement ("Agreement") is executed on this ____ day of _____, 20 at _____, India.

BETWEEN

_____, having its registered/office address, _____ hereinafter referred to as the "Agency/Consultant", which expression shall, unless repugnant to the context, include its successors, permitted assigns, representatives and authorised persons;

AND

PARTICULAR	DETAILS
NAME	:
PASSPORT NO.	:
NATIONALITY	:
DATE OF BIRTH	:
PERMANENT ADDRESS	:
	:
MOB. NO.	:
EMAIL	:

hereinafter referred to as the "Candidate";

AND

PARTICULAR	DETAILS
NAME	:
RELATIONSHIP WITH THE CANDIDATE	:
PASSPORT / ID NO.	:
DATE OF BIRTH	:
PERMANENT ADDRESS	:
	:
MOB. NO.	:
EMAIL	:

hereinafter referred to as the "Guarantor".

The Agency, Candidate and Guarantor shall collectively be referred to as the "Parties".

1. BACKGROUND AND PURPOSE

- 1.1. The Candidate has been selected/recruited through the Agency for employment with an employer/client located in the United Arab Emirates ("Employer").
 - **Employer/Client:** _____
 - **Job Title:** _____
 - **Place of Employment:** _____
 - **Country:** United Arab Emirates
 - **Employment Contract Date:** _____
 - **Probation Period:** Six (6) months from the Candidate's actual date of joining, unless a different period is expressly stated in the employment contract and accepted by the Parties.
- 1.2. The Candidate acknowledges that the Agency has incurred and/or facilitated recruitment, sourcing, documentation, processing, administrative, coordination, deployment and other related expenses and efforts in connection with the Candidate's recruitment and deployment.
- 1.3. The Candidate understands that the Agency's recruitment and deployment efforts are undertaken with the expectation that the Candidate will join the Employer and continue employment in good faith during the agreed Probation Period and for the contract period.
- 1.4. Accordingly, the Candidate voluntarily agrees to comply with the obligations contained in this Agreement.

- 1.5. The Guarantor, being a family member of the Candidate, voluntarily agrees to act as Guarantor for the Candidate's financial obligations arising under this Agreement, subject to the terms and limitations contained herein.

2. DEFINITIONS

For the purposes of this Agreement:

- 2.1. **"Candidate"** means the person identified as the Candidate in this Agreement and recruited/deployed for employment with the Employer.
- 2.2. **"Employer"** means the UAE-based employer/client with whom the Candidate has entered into an employment relationship.
- 2.3. **"Probation Period"** means the first six (6) months commencing from the Candidate's actual date of joining the Employer, unless otherwise specified in the Candidate's employment contract.
- 2.4. **"Candidate Default"** means a voluntary, wilful or candidate-attributable act or omission which results in the Candidate ceasing to continue employment before completion of the Probation Period in circumstances described in Clause 4 of this Agreement.
- 2.5. **"Guaranteed Amount"** means the amount payable upon a valid Candidate Default, being equivalent to **AED 6,000**, converted into Indian Rupees in accordance with Clause 5.
- 2.6. **"Security Cheque"** means the undated cheque voluntarily provided by the Candidate as security for the Candidate's obligations under this Agreement.

3. CANDIDATE'S UNDERTAKING

- 3.1. The Candidate undertakes to join the Employer and make reasonable efforts to continue the employment throughout the entire Probation Period.
- 3.2. During the Probation Period, the Candidate shall:
 - 3.2.1. report for duty as required by the Employer;
 - 3.2.2. perform the duties for which he/she has been recruited;
 - 3.2.3. comply with the lawful terms and conditions of employment;
 - 3.2.4. comply with the Employer's workplace rules and policies;
 - 3.2.5. comply with applicable UAE laws and regulations;
 - 3.2.6. not deliberately abandon or abscond from employment;
 - 3.2.7. not deliberately refuse to continue employment without lawful or reasonable justification;
 - 3.2.8. not engage in fraud, wilful misconduct or serious misconduct;
 - 3.2.9. provide accurate and genuine information and documentation; and
 - 3.2.10. promptly communicate with the Agency and Employer regarding any material issue affecting continuation of employment.
- 3.3. Nothing in this Agreement shall prevent the Candidate from exercising any statutory right available to him/her under applicable law.

4. CANDIDATE DEFAULT

- 4.1. A **Candidate Default** shall occur where, during the Probation Period, the Candidate voluntarily, wilfully or wrongfully ceases to continue employment or causes the employment to cease due to conduct attributable to the Candidate.
- 4.2. Candidate Default may include, without limitation:
 - 4.2.1. voluntarily abandoning employment;
 - 4.2.2. absconding from employment;
 - 4.2.3. voluntarily leaving the Employer without complying with applicable contractual or legal requirements;
 - 4.2.4. deliberately refusing to report for duty without reasonable justification;
 - 4.2.5. deliberately refusing to continue employment after joining;
 - 4.2.6. deliberately abandoning the position for which the Candidate was recruited;
 - 4.2.7. fraud or fraudulent conduct by the Candidate;
 - 4.2.8. submission of forged or materially false documents or information by the Candidate;
 - 4.2.9. serious misconduct or wilful misconduct attributable to the Candidate which directly results in termination of employment;
 - 4.2.10. deliberate violation of material employment obligations resulting in termination; or
 - 4.2.11. any other material act or omission attributable to the Candidate which directly results in premature cessation of employment.

- 4.3. The following circumstances shall **not ordinarily constitute Candidate Default**:
- 4.3.1. termination by the Employer for reasons unrelated to the Candidate's misconduct or default;
 - 4.3.2. redundancy or workforce reduction;
 - 4.3.3. closure of the Employer's business or cancellation of the position;
 - 4.3.4. the Employer's inability or unwillingness to continue the employment for reasons not attributable to the Candidate;
 - 4.3.5. material breach of the employment agreement by the Employer;
 - 4.3.6. documented medical incapacity or other circumstances recognised under applicable law;
 - 4.3.7. force majeure circumstances;
 - 4.3.8. circumstances where continuation of employment becomes legally impossible;
 - 4.3.9. circumstances arising from a material breach by the Employer; or
 - 4.3.10. any other circumstance which, upon reasonable examination of the facts, was not caused by the Candidate's voluntary or wilful default.
- 4.4. The determination of Candidate Default shall be made on the basis of the relevant facts, employment records, communications, documents and other reasonably available evidence.

5. GUARANTEED AMOUNT AND EXCHANGE RATE

- 5.1. Upon occurrence of a valid Candidate Default during the Probation Period, the Candidate shall be liable for an amount equivalent to: **AED 6,000/- United Arab Emirates Dirhams Six Thousand Only**
- 5.2. For the purpose of this Agreement and for determining the INR equivalent of the Guaranteed Amount, the Parties agree to the following base exchange rate: **AED 1 = INR 26**
- 5.3. Accordingly, the initial INR equivalent of the Guaranteed Amount shall be: **INR 1,56,000/- Indian Rupees One Lakh Fifty-Six Thousand Only**
- 5.4. The Parties acknowledge that the AED 6,000 figure represents the underlying agreed amount and that the INR figure is the equivalent used for the purpose of execution and enforcement of this Agreement in India.

6. EXCHANGE RATE ADJUSTMENT

- 6.1. The Parties acknowledge that foreign exchange rates may fluctuate during the six-month Probation Period.
- 6.2. If the applicable AED/INR exchange rate changes by **more than Ten percent (10%)** from the agreed base rate of INR 26 per AED, the INR equivalent of the Guaranteed Amount may be correspondingly revised.
- 6.3. For reference: **Base exchange rate:** INR 26 per AED, **10% threshold:** INR 23.40 to INR 28.60 per AED
Accordingly, a revision may be considered where the applicable exchange rate moves:
- below INR 23.40 per AED; or
 - above INR 28.60 per AED.
- 6.4. The applicable exchange rate shall be determined using the published rate of a recognised Indian bank or another mutually acceptable reliable financial institution/source on the relevant date.
- 6.5. The revised INR liability shall be calculated as: **AED 6,000 × Applicable AED/INR Exchange Rate = Revised INR Equivalent**
- 6.6. Any revised amount shall be communicated to the Candidate and Guarantor in writing along with the calculation used.
- 6.7. Any adjustment to the Guaranteed Amount shall remain subject to applicable Indian law.
- 6.8. If the revised liability requires a security instrument for an amount different from the original security cheque, the Agency shall obtain an appropriate replacement security instrument in accordance with applicable law rather than unilaterally altering the amount of the existing cheque.

7. SECURITY CHEQUE

- 7.1. As security for the Candidate's obligations under this Agreement, the Candidate voluntarily provides an **undated security cheque**.
- 7.2. The initial amount of the security cheque shall be: **INR 1,56,000/- Indian Rupees One Lakh Fifty-Six Thousand Only**
- 7.3. The Candidate expressly acknowledges that the cheque is being provided **as security for the obligations under this Agreement and not as an immediate payment**.
- 7.4. The Security Cheque shall be retained by the Agency during the Probation Period, subject to the terms of this Agreement.
- 7.5. The cheque is intentionally undated because the Probation Period extends for six (6) months and the Parties intend that the security remain available throughout the Probation Period, subject to applicable law.
- 7.6. The Candidate voluntarily authorises the Agency, subject to applicable law and the terms of this Agreement, to complete the date of the Security Cheque only upon the occurrence of a valid Candidate Default and where the Guaranteed Amount has become lawfully payable.

- 7.7. The Agency shall not use or present the Security Cheque for any purpose unrelated to the obligations expressly covered by this Agreement.
- 7.8. The Agency shall not present the Security Cheque merely because the Candidate's employment has ended during the Probation Period. The circumstances must first constitute a Candidate Default under this Agreement.

8. UNDATED SECURITY CHEQUE – SPECIFIC AUTHORISATION

- 8.1. The Candidate confirms that the Security Cheque has been voluntarily signed and delivered to the Agency.
- 8.2. The Candidate acknowledges and agrees that the cheque is being retained as security against the Guaranteed Amount.
- 8.3. The Candidate authorises the Agency, subject to applicable law, to complete the date of the cheque only after a valid Candidate Default has occurred and the Candidate's liability under this Agreement has become payable.
- 8.4. The Agency shall not insert a date on the cheque merely for the purpose of defeating or bypassing the six-month Probation Period.
- 8.5. The Agency shall not alter the amount of the cheque except where permitted by applicable law and with the necessary authority of the person who issued the cheque.
- 8.6. The Candidate acknowledges that the issuance, holding, presentation and enforcement of the Security Cheque shall be subject to the **Negotiable Instruments Act, 1881**, and other applicable laws of India.
- 8.7. Nothing contained in this Agreement shall be interpreted as creating an unconditional or unrestricted right to present the cheque irrespective of whether a valid liability has arisen.

9. CIRCUMSTANCES IN WHICH SECURITY CHEQUE MAY BE PRESENTED

- 9.1. Subject to applicable Indian law, the Agency may complete and present the Security Cheque where:
- 9.1.1. a valid Candidate Default has occurred during the Probation Period;
 - 9.1.2. the Candidate has absconded from employment;
 - 9.1.3. the Candidate has voluntarily abandoned employment;
 - 9.1.4. the Candidate has voluntarily discontinued employment in breach of applicable contractual/legal requirements;
 - 9.1.5. the Candidate deliberately refuses to continue employment without lawful justification;
 - 9.1.6. the Candidate's employment is terminated directly because of fraud, wilful misconduct or serious misconduct attributable to the Candidate;
 - 9.1.7. the Candidate has knowingly provided fraudulent or materially false documents which directly result in termination;
or
 - 9.1.8. another material Candidate Default expressly covered by this Agreement has occurred.
- 9.2. Before presentation of the Security Cheque, the Agency shall, where reasonably practicable, provide written notice to the Candidate and Guarantor setting out:
- 9.2.1. the nature of the alleged default;
 - 9.2.2. the date of the default;
 - 9.2.3. the amount claimed;
 - 9.2.4. the contractual provision relied upon; and
 - 9.2.5. reasonable details supporting the claim.
- 9.3. Where the Candidate has absconded, cannot reasonably be contacted, or the circumstances involve fraud or serious misconduct, the Agency may take such lawful steps as may be available to protect and enforce its rights.
- 9.4. The Agency shall not present the cheque where the Candidate's employment ended solely because of circumstances expressly excluded under Clause 4.3.
- 9.5. The Agency shall not seek recovery through the Security Cheque of an amount exceeding the amount lawfully due under this Agreement.

10. SECURITY CHEQUE IS NOT A BLANK CHEQUE

- 10.1. The Parties expressly acknowledge that the Security Cheque is **undated**, but it is not intended to be an unrestricted blank cheque.
- 10.2. The Candidate has voluntarily provided the signed cheque as security for a specific contractual liability of AED 6,000, subject to the INR conversion and exchange-rate provisions contained in this Agreement.
- 10.3. The Agency shall use the cheque only in accordance with this Agreement and applicable law.
- 10.4. The Agency shall not use the cheque to recover any unrelated amount, recruitment fee, salary, penalty or other amount not expressly covered by this Agreement.

11. GUARANTEE BY FAMILY MEMBER

- 11.1.** The Guarantor confirms that he/she is a family member of the Candidate and voluntarily agrees to stand as Guarantor for the Candidate's obligations under this Agreement.
- 11.2.** The Guarantor confirms that he/she has read and understood the terms of this Agreement.
- 11.3.** Subject to applicable law, the Guarantor guarantees payment of the Guaranteed Amount if:
 - 11.3.1.** a valid Candidate Default occurs;
 - 11.3.2.** the Guaranteed Amount becomes lawfully payable; and
 - 11.3.3.** the Candidate fails to discharge the amount payable in accordance with this Agreement.
- 11.4.** The Guarantor's liability shall not exceed the Guaranteed Amount lawfully payable under this Agreement.
- 11.5.** The Guarantor shall not be liable merely because the Candidate's employment ends during the Probation Period.
- 11.6.** The Guarantor's liability shall arise only where the circumstances constitute a valid Candidate Default under this Agreement.
- 11.7.** The Guarantor confirms that he/she has entered into this guarantee voluntarily and has been provided an opportunity to obtain independent legal advice before signing.

12. NOTICE OF DEFAULT

- 12.1.** Where the Agency believes that a Candidate Default has occurred, the Agency shall, where reasonably practicable, issue a written notice to the Candidate and Guarantor.
- 12.2.** The notice shall contain reasonable particulars of the alleged default.
- 12.3.** The Candidate may provide an explanation or supporting documents within the period specified in the notice.
- 12.4.** Where the Candidate provides evidence demonstrating that the employment ended for reasons outside his/her responsibility, the Agency shall consider such evidence before enforcing the Guaranteed Amount.
- 12.5.** Nothing in this Clause shall prevent the Agency from taking immediate lawful action where the Candidate has absconded, cannot reasonably be contacted, or circumstances require urgent protection of the Agency's contractual rights.

13. RETURN OF SECURITY CHEQUE

- 13.1.** Upon successful completion of the six (6) month Probation Period, provided that:
 - 13.1.1.** the Candidate has completed the Probation Period;
 - 13.1.2.** no valid Candidate Default remains outstanding;
 - 13.1.3.** no amount is lawfully outstanding under this Agreement; and
 - 13.1.4.** the Security Cheque has not been lawfully presented pursuant to this Agreement,the Agency shall return the original Security Cheque to the **Guarantor**.
- 13.2.** The Agency shall preferably return the original cheque against a written acknowledgement signed by the Guarantor.
- 13.3.** The Guarantor shall sign the Security Cheque Return Acknowledgement contained in Schedule B.
- 13.4.** Upon return of the original Security Cheque, the Agency shall have no further right to present or otherwise use that cheque.
- 13.5.** The return of the Security Cheque shall not affect any independent liability that may have lawfully arisen before its return and which has not been discharged, provided such liability is otherwise enforceable under this Agreement and applicable law.

14. CANDIDATE'S REPRESENTATIONS

The Candidate represents and confirms that:

- 14.1.** all information provided by the Candidate is true and accurate;
- 14.2.** all documents provided by the Candidate are genuine;
- 14.3.** the Candidate has read and understood this Agreement;
- 14.4.** the Candidate has understood the consequences of a Candidate Default;
- 14.5.** the Candidate understands that the Guaranteed Amount is initially INR 1,56,000/- based on AED 6,000 at INR 26 per AED;
- 14.6.** the Candidate understands that the exchange-rate adjustment mechanism may alter the INR equivalent if the exchange rate changes by more than 10% from the agreed base rate;
- 14.7.** the Candidate understands that an undated Security Cheque is being provided;
- 14.8.** the Candidate understands the circumstances in which the Security Cheque may be presented;
- 14.9.** the Candidate has entered into this Agreement voluntarily and without coercion, threat or undue influence; and
- 14.10.** the Candidate has been given an opportunity to obtain independent legal advice before signing this Agreement.

15. GUARANTOR'S REPRESENTATIONS

The Guarantor represents and confirms that:

- 15.1. the Guarantor is a family member of the Candidate;
- 15.2. the information provided by the Guarantor is true and accurate;
- 15.3. the Guarantor has read and understood this Agreement;
- 15.4. the Guarantor understands the Candidate's obligations;
- 15.5. the Guarantor understands the AED 6,000 underlying liability and INR conversion mechanism;
- 15.6. the Guarantor understands the purpose of the Security Cheque;
- 15.7. the Guarantor understands the circumstances in which the Security Cheque may be presented;
- 15.8. the Guarantor voluntarily agrees to provide the guarantee; and
- 15.9. the Guarantor has been given an opportunity to obtain independent legal advice before signing.

16. NO COERCION OR UNDUE INFLUENCE

- 16.1. The Candidate and Guarantor confirm that they are signing this Agreement voluntarily.
- 16.2. Neither the Candidate nor the Guarantor has been forced, threatened or improperly induced to sign this Agreement.
- 16.3. The Parties confirm that they have had sufficient opportunity to read and understand the Agreement before signing.

17. EMPLOYMENT RIGHTS

- 17.1. Nothing in this Agreement shall be interpreted as preventing the Candidate from exercising any mandatory statutory employment right.
- 17.2. This Agreement shall not be interpreted as requiring the Candidate to remain in employment where such requirement is prohibited by applicable law.
- 17.3. The Agreement concerns the financial consequences of a defined contractual default and is not intended to unlawfully restrict the Candidate's right to employment, resignation or access to statutory remedies.
- 17.4. The Candidate's actual employment relationship with the Employer shall remain governed by the applicable employment contract and mandatory UAE employment laws.

18. CONFIDENTIALITY

- 18.1. The Parties shall maintain confidentiality regarding personal, financial, employment and contractual information exchanged in connection with this Agreement.
- 18.2. Disclosure shall be permitted where required by:
 - 18.2.1. law;
 - 18.2.2. a court or competent authority;
 - 18.2.3. a government or regulatory authority;
 - 18.2.4. a legal or professional adviser;
 - 18.2.5. a bank or financial institution in connection with lawful enforcement; or
 - 18.2.6. any other circumstance where disclosure is legally required.

19. NOTICES AND COMMUNICATION

- 19.1. Notices under this Agreement may be communicated through:
 - 19.1.1. email;
 - 19.1.2. WhatsApp or other electronic communication capable of being recorded;
 - 19.1.3. registered post/courier; or
 - 19.1.4. any other written communication method through which delivery can reasonably be established.
- 19.2. The Candidate and Guarantor shall provide accurate contact details.
- 19.3. The Candidate and Guarantor shall promptly inform the Agency of any material change in their contact details.

20. GOVERNING LAW

- 20.1. This Agreement shall be governed by and construed in accordance with the **laws of India**.
- 20.2. The validity, interpretation and enforcement of this Agreement shall, to the extent legally permissible, be determined in accordance with applicable Indian law.
- 20.3. Matters concerning the Security Cheque shall be governed by the applicable laws of India, including the **Negotiable Instruments Act, 1881**, as amended from time to time.

20.4. Nothing in this Agreement shall be interpreted as excluding any mandatory law applicable to the Candidate's employment in the United Arab Emirates.

21. JURISDICTION

- 21.1. The Parties agree that disputes arising out of or in connection with this Agreement shall be subject to the jurisdiction of the **competent courts in Delhi, India**, subject to applicable law.
- 21.2. The appropriate territorial jurisdiction shall be determined in accordance with applicable Indian law, including applicable rules relating to contractual disputes and negotiable instruments.
- 21.3. Nothing in this Clause shall prevent a Party from approaching a court, authority or regulatory body where such jurisdiction is mandatory by law.

22. ENTIRE AGREEMENT

- 22.1. This Agreement constitutes the complete understanding between the Parties concerning the Candidate's obligations during the Probation Period and the security provided for those obligations.
- 22.2. Any amendment or modification to this Agreement shall be made in writing and signed by the relevant Parties.
- 22.3. Any waiver of a provision shall be valid only if made in writing by the Party granting the waiver.

23. SEVERABILITY

- 23.1. If any provision of this Agreement is determined to be invalid, illegal or unenforceable by a competent authority, such provision shall be modified or severed to the minimum extent necessary.
- 23.2. The remaining provisions shall continue to remain valid and enforceable to the extent permitted by law.

24. NO ASSIGNMENT

- 24.1. The Candidate shall not assign his/her obligations under this Agreement without the prior written consent of the Agency.
- 24.2. The Guarantor shall not transfer or assign the guarantee without the written consent of the Agency.

25. ACKNOWLEDGEMENT BY THE PARTIES

By signing below, the Parties expressly acknowledge and confirm that:

- 25.1. they have read and understood this Agreement;
- 25.2. the purpose of the Agreement has been explained to them;
- 25.3. the Candidate understands the AED 6,000 underlying liability;
- 25.4. the Candidate understands that the initial INR equivalent is INR 1,56,000/-;
- 25.5. the Candidate understands the 10% exchange-rate adjustment mechanism;
- 25.6. the Candidate understands that an undated Security Cheque is being provided;
- 25.7. the Candidate understands the circumstances in which the cheque may be presented;
- 25.8. the Guarantor understands his/her obligations under the guarantee;
- 25.9. the Candidate and Guarantor have entered into the Agreement voluntarily;
- 25.10. they have been given an opportunity to seek independent legal advice;
- 25.11. the original Security Cheque is intended to be returned to the Guarantor upon successful completion of the six-month Probation Period, subject to there being no outstanding liability; and
- 25.12. the Parties agree to be bound by the terms and conditions contained herein.

FOR CANDIDATE	FOR GUARANTOR	FOR CONSULTANT
NAME: PASSPORT NO.: ADD: DATE:	NAME: PASSPORT/ID NO.: ADD: DATE:	AUTH. REP.: DESIGNATION: DATE:

SCHEDULE A
SECURITY CHEQUE DETAILS

PARTICULARS	DETAILS
CANDIDATE NAME :	_____
GUARANTOR NAME :	_____
UNDERLYING LIABILITY :	_____
BASE EXCHANGE RATE :	_____
INITIAL INR EQUIVALENT :	_____
CHEQUE ISSUED BY :	_____
CHEQUE NO. :	_____
BANK NAME :	_____
BRANCH :	_____
ACCOUNT NO. :	_____
CHEQUE AMOUNT :	_____
CHEQUE DATE :	UNDATED
DATE OF SUBMISSION :	_____
PAYEE NAME :	_____

Purpose: Security for the Candidate's obligations under the Candidate Employment Continuation Bond & Guarantee Agreement.

SCHEDULE B
SECURITY CHEQUE RETURN ACKNOWLEDGEMENT

I, **Mr./Ms.** _____, being the Guarantor of **Mr./Ms.** _____, hereby acknowledge that I have received from _____ **(Agency Name)** the original Security Cheque provided under the Candidate Employment Continuation Bond & Guarantee Agreement.

Cheque Number: _____

Bank: _____

Cheque Amount: INR 1,56,000/-

I confirm that the Security Cheque is being returned to me following successful completion of the Candidate's applicable six (6) month Probation Period and confirmation that there is no outstanding liability under the Agreement.

I further acknowledge that the original Security Cheque has been physically returned to me and that the Agency shall no longer retain the original instrument.

Signature: _____

Name of Guarantor: _____

Date of Return: _____

Place: _____

FOR AGENCY/CONSULTANT

Signature: _____

Authorised Representative: _____

Designation: _____

Date: _____